Understanding Data Flows and Privacy

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MHI1001: Information and Communication Technology in Healthcare

PHIPA/PIPA Roles

Health Information Custodian

Hospital #1 (Academic)

Hospital #2 (Community)

Large Primary Care Clinic

Community Care Agency

Health Information Network Provider

The Health Authority

Electronic Service Provider

The Solution Vendor

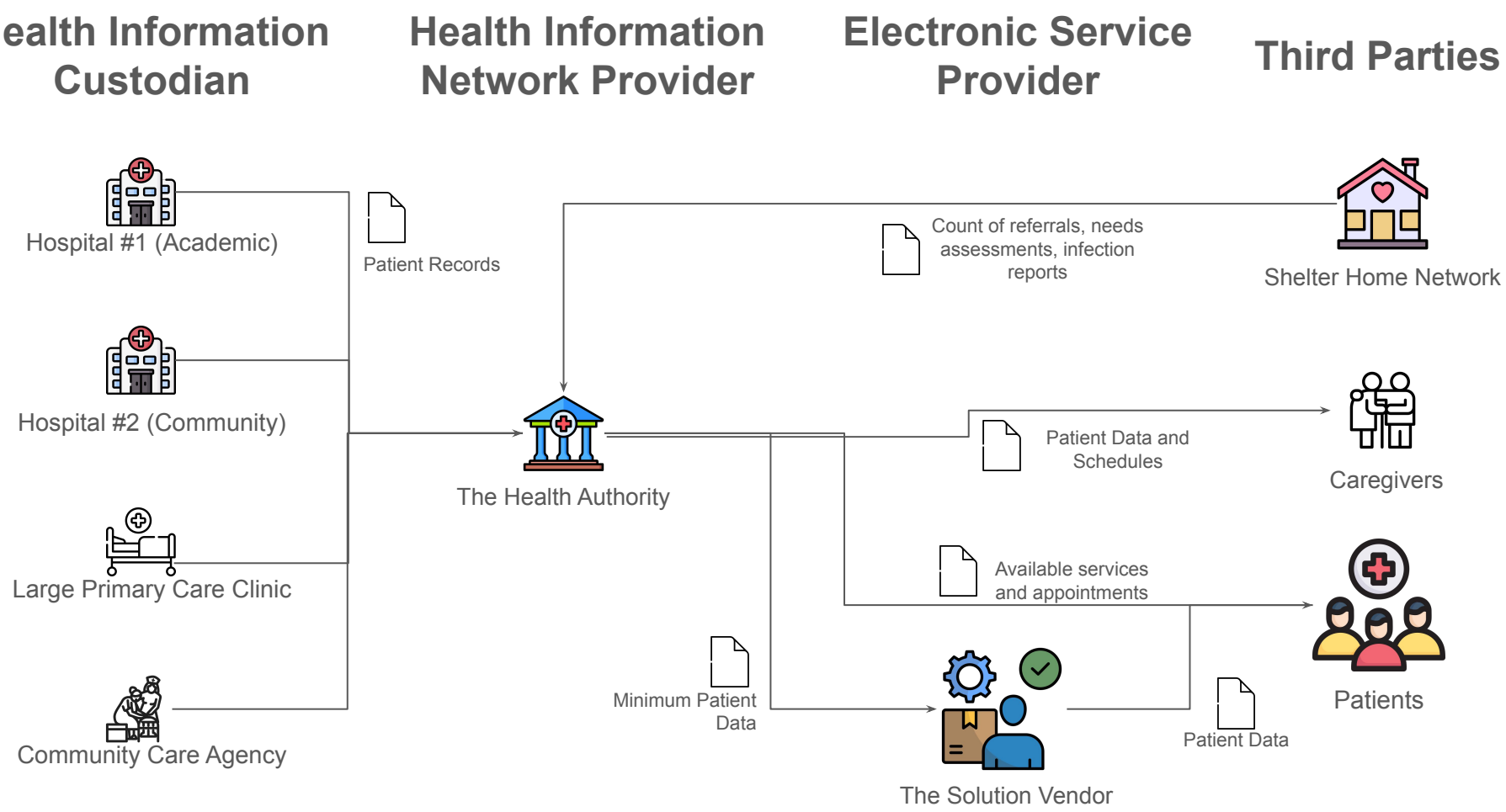
Third Parties

Shelter Home Network

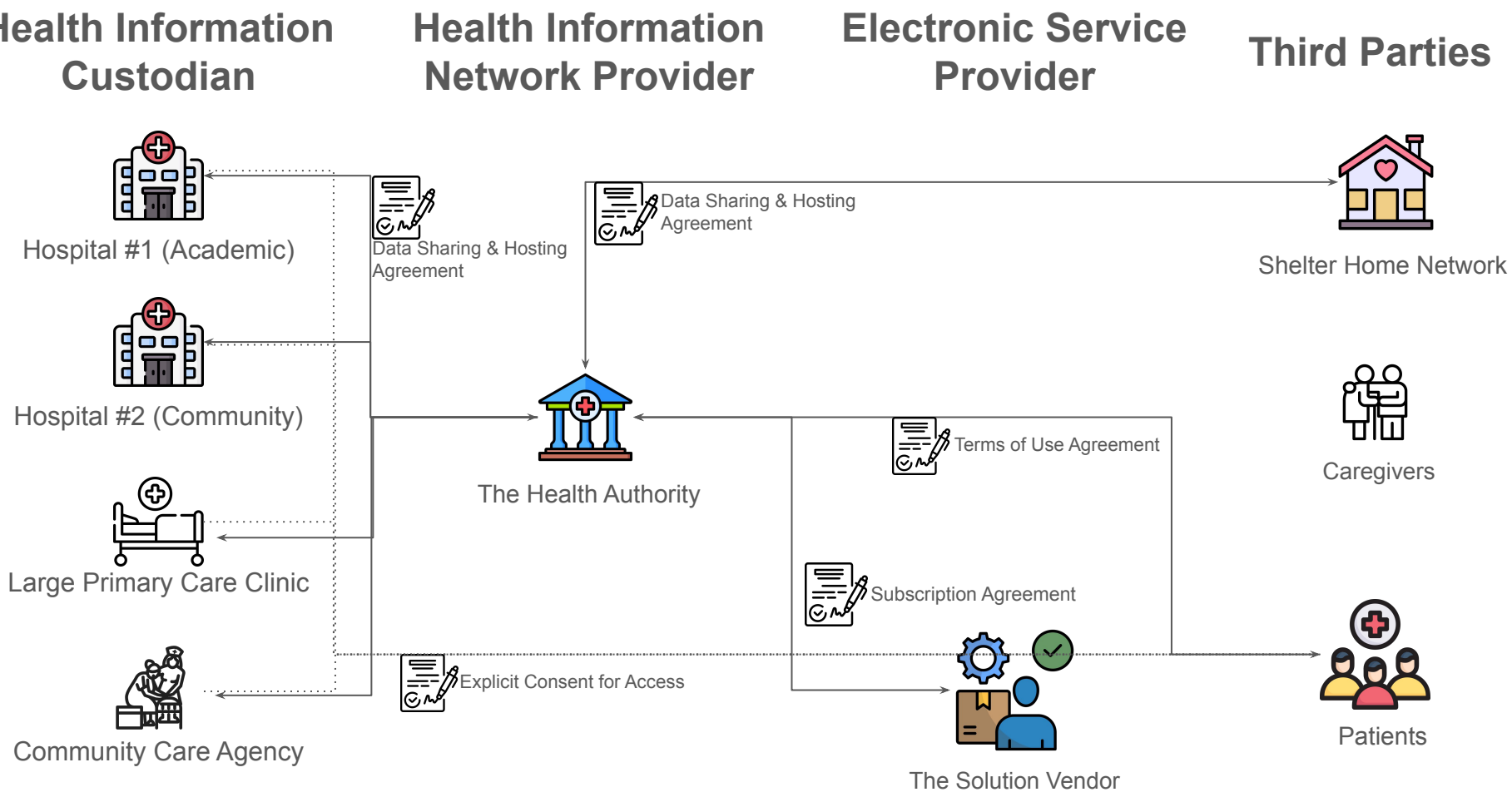
Caregivers

Patients

Data Flow View



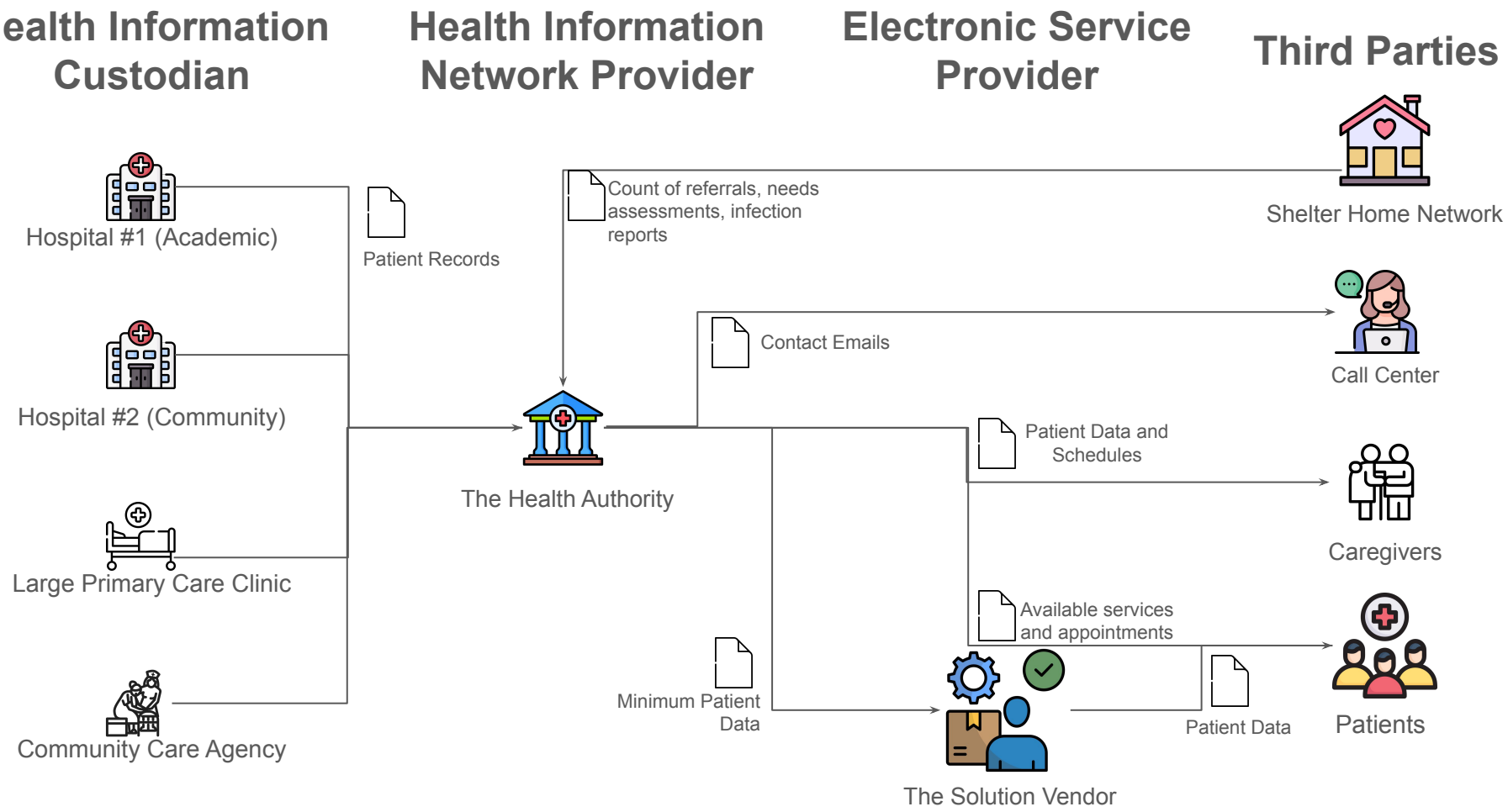
Legal Agreement View



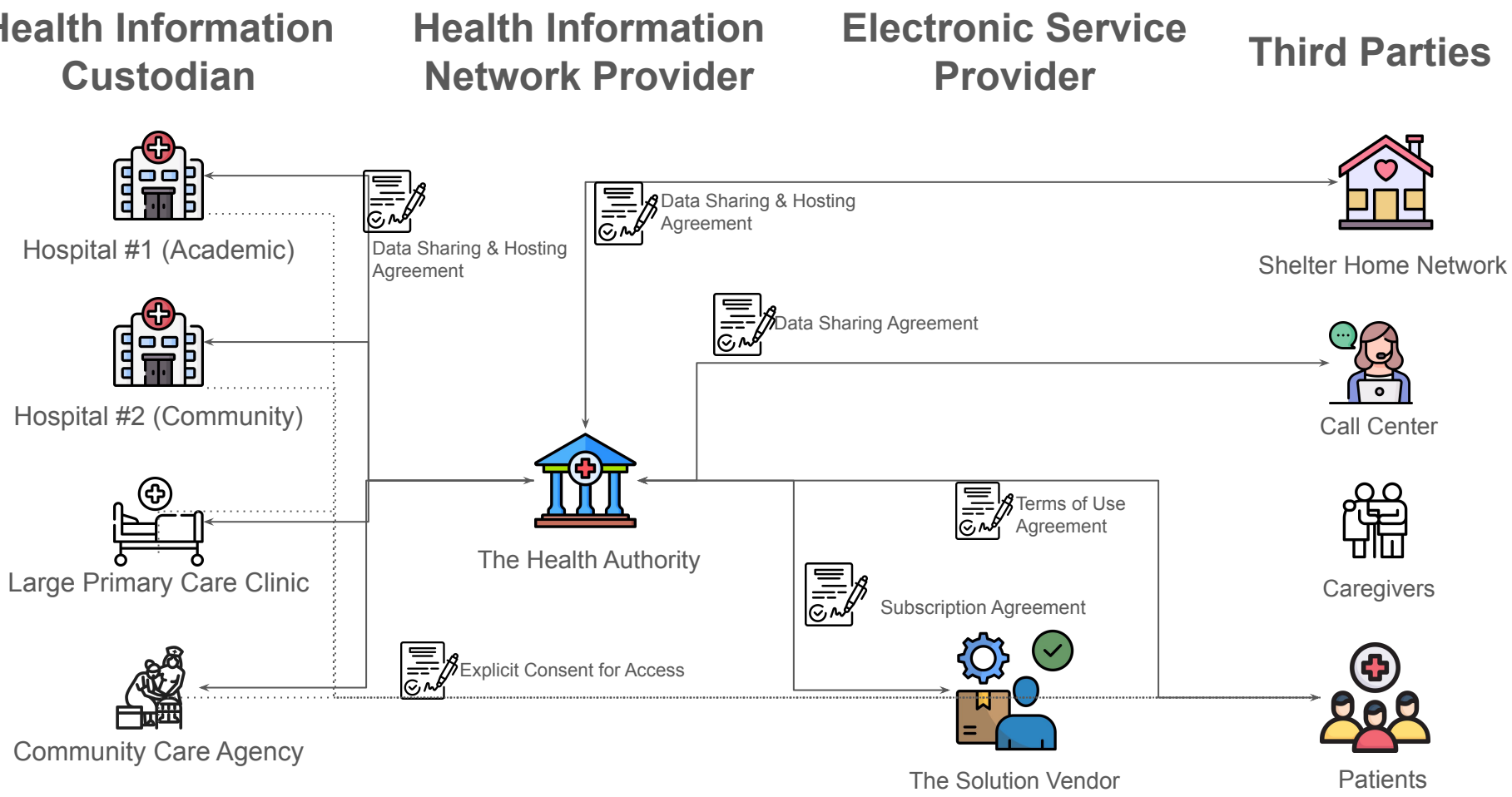
Contracts and Sharing Agreements

- **Data Sharing & Hosting Agreement**
  - There must be a Data Sharing and Hosting Agreement between the Health Information Custodians (HICs) and the HINP. The HICs maintain legal custody and control over personal health information (PHI), while the Health Authority, the Health Information Network Provider (HINP), will receive and host data from the HICs for integration and analytics. This includes the exchange of data from the EPIC, MedAccess, and Profile systems, and analytics on emergency department (ED) admissions, wait times, and service utilization. A Data Sharing and Hosting Agreement is required under PHIPA to define the specific elements shared, and the roles, responsibilities, and accountability of each party.
  - Similarly, The Health Authority and Shelter Home Network must also have a Data Sharing and Hosting Agreement. The Shelter Home Network would collect contact information from the Health Authority and an agreement is necessary to govern the exchange, storage, and permitted uses of the data.
- **Subscription Agreement**
  - The Solution Vendor is an Electronic Service Provider (ESP), and it will supply and manage the technology infrastructure that supports the Health Authority's system integration and analytics functions. Under PHIPA, the ESP hosts but does not have ownership rights over PHI, and may only process or store data on behalf of the custodian.
- **Terms of Use Agreement**
  - A Terms of Use Agreement between the Health Authority and the Patients is necessary because it will govern how patients can use the system, what data will be collected, and how it will be used.
- **Explicit Consent for Access**
  - The HICs will need express (explicit) consent for access from the patients to access the patient's information if they do not have implied consent.

Data Flow View (with Call Center)



Legal Agreement View (with Call Center)



Overview of Engagement with the Call Center

The call center company would operate as a third-party service provider contracted by the Health Authority to support outreach for the new caregiver support program. The call center is not hosting any information, it is just contracted to contact patients who are eligible for the Shelter Home Network program according to the Health Authority. This engagement must comply with PHIPA to ensure that the data shared and accessed is handled in accordance with provincial privacy and security standards. The purpose of the Data Sharing Agreement is to enable to call center to contact eligible individuals and inform them about the program. Since the data that will be shared includes contact information such as names, email addresses, and phone numbers, the Health Authority should consider whether express (explicit) consent is required before sharing contact information with the call center.

Some additional key points must also be considered in the engagement. First, the Health Authority should clarify what specific data will be shared, and whether the call center will receive only contact details or if any PHI will also be shared, such as eligibility criteria, health conditions, or care needs. Next, there must be guidelines regarding how the data will be transferred and possibly stored. It is also important to define who will have access to the data within the call center and to ensure role-based restrictions are in place. Finally, the Health Authority must determine what type of patient consent is required for this type of outreach to ensure that individuals are informed of how their information is being used.